

CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL VALLEY REGION

ORDER R5-2017-0072

AMENDING WASTE DISCHARGE REQUIREMENTS ORDER R5-2016-0092
FOR
CALIFORNIA DEPARTMENT OF CORRECTIONS AND REHABILITATION
PLEASANT VALLEY STATE PRISON
WASTEWATER TREATMENT FACILITY
FRESNO COUNTY

The California Regional Water Quality Control Board, Central Valley Region (hereafter Central Valley Water Board or Board) finds that:

Background

1. On 6 December 2016, the Central Valley Water Board adopted Waste Discharge Requirements (WDRs) Order R5-2016-0092, prescribing requirements for the California Department of Corrections and Rehabilitation, Pleasant Valley State Prison wastewater treatment facility (WWTF) in Fresno County.
2. Order R5-2016-0092 was issued to reflect proposed upgrades of the WWTF at the Pleasant Valley State Prison to produce disinfected tertiary wastewater.
3. Order R5-2016-0092 contains Effluent limitations C.1.d as follows:
 1. Effluent shall not exceed the following limitations when disinfected 23 secondary wastewater is discharged. **[Compliance shall be determined at EFF-001¹]**

* * *
 - d) *The median concentration of total coliform bacteria in disinfected secondary-2.2 recycled water shall exceed the following (Title 22, section 60301.220):*
 - i. *a most probable number (MPN) of 2.2 total coliform bacteria per 100 milliliters utilizing the bacteriological results of the last seven days for which the analyses have been completed; and*
 - ii. *an MPN of 23 total coliform bacteria per 100 milliliters in more than one sample in any 30-day period.*
4. Order R5-2016-0092 contains Provision G.13 as follows:
 13. ***Upon completion of construction and prior to operation of the WWTF, the Discharger shall submit a technical report in the form of an engineering report and certification that demonstrates the upgrades to the WWTF have been completed and the effluent can meet the requirements of disinfected tertiary wastewater for Executive Officer approval. Upon approval of the engineering report from the Executive Officer the Discharger shall comply with WDRs Order R5-2016-0092,***

Effluent Limitations C.5 through C.8 and continue monitoring in accordance to the requirements in Monitoring and Reporting Program R5-2016-0092.

California Environment Quality Act

5. This action to amend WDRs Order R5-2016-0092 is exempt from the provisions of the California Environmental Quality Act (CEQA)(Pub. Resources Code, § 21000 et seq.) in accordance with California Code of Regulations, title 14, section 15301, which exempts the "operation, repair, maintenance, [and] permitting ... of existing public or private structures, facilities, mechanical equipment, or topographical features" from environmental review.

Public Notice

6. The Central Valley Water Board has notified the Discharger and interested agencies and persons of its intent to amend waste discharge requirements for this discharge and has provided them with an opportunity for a public hearing and an opportunity to submit their written views and recommendations.
7. The Central Valley Water Board, in a public meeting, heard, and considered all comments pertaining to the discharge.

IT IS HEREBY ORDERED that, pursuant sections 13263 and 13267 of the California Water Code, Waste Discharge Requirements Order R5-2016-0092 is amended to change the Effluent Limitations C.1.d and Provision G.13. The California Department of Corrections and Rehabilitation, Pleasant Valley State Prison, its agents, successors, and assigns, in order to meet the provisions contained in Division 7 of the California Water Code and regulations adopted thereunder, shall comply with amended Order R5-2017-0072 as follows:

Effluent Limitation C.1.d shall be replaced by the following:

1. Effluent shall not exceed the following limitations when disinfected 23 secondary wastewater is discharged. **[Compliance shall be determined at EFF-001¹]**

* * *

- d) *The median concentration of total coliform bacteria in disinfected secondary-2.2 recycled water shall not exceed the following (Title 22, section 60301.220):*
 - i. *a most probable number (MPN) of 2.2 total coliform bacteria per 100 milliliters utilizing the bacteriological results of the last seven days for which the analyses have been completed; and*

- ii. *an MPN of 23 total coliform bacteria per 100 milliliters in more than one sample in any 30-day period.*

Provision G.13 shall be replaced by the following:

13. ***Upon completion of construction and prior to operation of the WWTF, the Discharger shall submit a technical report in the form of an engineering report and certification that demonstrates the upgrades to the WWTF have been completed and the effluent can meet the requirements of disinfected tertiary wastewater for Executive Officer approval. Upon approval of the engineering report from the Executive Officer the Discharger shall comply with WDRs Order R5-2016-0092, Effluent Limitations C.2.a through C.2.d and continue monitoring in accordance to the requirements in Monitoring and Reporting Program R5-2016-0092.***

Any person aggrieved by this action of the Central Valley Water Board may petition the State Water Board to review the action in accordance with Water Code section 13320 and California Code of Regulations, title 23, sections 2050 and following. The State Water Board must receive the petition by 5:00 p.m., 30 days after the date of this Order, except that if the thirtieth day following the date of this Order falls on a Saturday, Sunday, or state holiday, the petition must be received by the State Water Board by 5:00 p.m. on the next business day. Copies of the law and regulations applicable to filing petitions may be found on the Internet at:

http://www.waterboards.ca.gov/public_notices/petitions/water_quality

or will be provided upon request.

This Order is effective as of the date of adoption.

I, PAMELA C. CREEDON, Executive Officer, do hereby certify the foregoing is a full, true, and correct copy of an Order adopted by the California Regional Water Quality Control Board, Central Valley Region, on 9 June 2017.



PAMELA C. CREEDON, Executive Officer